

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Friday, May 15, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday May 15, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-03369	Veronica Padron vs Bhavesh Patel, et. al.
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Motion for an Order Compelling Defendant Bhavesh Patel, to Comply with the Court's 3-27-24 Order to Pay Monetary Sanctions in the Amount of \$400 by 4-5-24 in Connection with Plaintiff's Motion Deeming all Requests for Admission Admitted & to Respond to Plaintiff's Second Set of Form Interrogatories by 4-5-24 & Pay Monetary Sanctions in the Amount of \$400

Plaintiff's motion is GRANTED IN PART and DENIED IN PART.

Defendant Patel has failed to comply with this court's March 27, 2024, order.

The request for monetary sanction is GRANTED.

Monetary sanctions in the amount of \$1,430 are to be paid to Plaintiff's counsel within fifteen (15) days of this court's order.

Defendant Patel is ordered to comply with this court's discovery order entered on March 27, 2024, within five (5) days of being served with this order.

The request for evidentiary sanction is DENIED WITHOUT PREJUDICE. Any request for issue or evidentiary sanctions must be accompanied by a separate statement. (Rules of Court, rule 3.1345, subd. (a)(7).)

Motion to Compel the Deposition of Defendant Bhavesh Patel and Production of Documents and Request for Monetary Sanctions in the Amount of \$2,461.05

Plaintiff's motion to compel the deposition of defendant Patel and production of documents is GRANTED.

Service of a notice of deposition is effective to require a party to attend and testify as well as produce any document for inspection and copying. (Code Civ. Proc. § 2025.280 subd. (a).)

Defendant Patel failed to appear for his properly notice deposition on December 17, 2025.

Defendant Patel is ordered to appear for his deposition via Zoom, or any appropriate remote platform, on May 19, 2026, and to produce the documents set forth in the Requests for Production of Document attached to the deposition notice.

The request for monetary sanction is GRANTED.

Monetary sanctions in the amount of \$2,461.05 are to be paid to Plaintiff's counsel within fifteen (15) days of this court's order.

24CV-01907 Key Star Capital Fund III, L.P. vs Kenneth Zwart, et al.

Application for Writ of Attachment

The application of plaintiff Key Star Capital Fund III, L.P, for a writ of attachment against defendants Kenneth J. Zwart and Beverly A. Zwart is GRANTED in the amount of \$376,844.11.

A writ of attachment will issue upon the filing of an undertaking of \$10,000 by Key Star Capital. (Code Civ. Proc. §§ 489.210, 489.220.)

Having reviewed the application, supporting memorandum of points and authorities and declaration, the court finds that Key Star Capital's claim is one on which an attachment may be issued; Key Star Capital has established the probable validity of the claims on which the attachment is based; the attachment is sought for no purpose other than the recovery on the claim on which the attachment is based; and the amount to be secured by the attachment is greater than zero.

Key Star Capital has put forth sufficient evidence supporting establishing probable validity as to the claim regarding the promissory note. (Hrebenar Decl. ¶¶5, 9-11, 16, and Exhibits 1 and 2 attached thereto.)

The amount to be secured by the attachment was determined by an evaluation of the probable validity of Key Star Capital's claim regarding the principal amount remaining on

a written commercial promissory note and filing costs, but not as to the interest claimed or attorney's fees.

The interest amount claimed through April 6, 2026, of \$60,352.68, is not supported by admissible evidence. Although a daily per diem of \$122.64 is given, there is no evidence of the date the interest started accruing or how that amount was ascertained. Accordingly, the \$60,352.68 is subtracted from the requested amount to be secured by attachment.

The amount of estimated attorney's fees of \$17,390.79 was also reduced. The declaration of Hrebenar implies that the requested attorney's fees are based on Local Rule 3.4. (Hrebenar Decl. ¶ 16.) However, the amount of attorney's fees based on Local Rule 3.4 amounts to between \$7,929.10 and \$8,532.62, depending on whether the claimed interest is included. Further, the estimated attorney's fees are not supported by a declaration from counsel. Accordingly, the court in its discretion includes estimated attorney's fees of \$8,500.

Accordingly, the amount to be secured by attachment is \$376,844.11.

Plaintiff is to file prefilled right to attach order and writ of attachment after hearing forms (AT-120 and AT-135) within ten (10) days of this court's order.

24CV-03398

Edith Bernal vs Foster Poultry Farms, LLC, et al.

Motion for Terminating and Monetary Sanctions CCP 2031.300 (C), 2023.010 (G), & 2023.030 (A)-(D)

Defendant's motion is **GRANTED IN PART** and **DENIED IN PART**.

The request for judicial notice is **GRANTED**.

Plaintiff Bernal has failed to comply with this court's August 7, 2025, order.

The request for monetary sanction is **GRANTED**.

Monetary sanctions in the amount of \$1,500 are to be paid to Defendant's counsel within fifteen (15) days of this court's order.

Plaintiff is ordered to comply with this court's discovery order entered on August 7, 2025, within ten (10) days of being served with this order.

The request for terminating sanctions is **DENIED WITHOUT PREJUDICE**.

Other than the delay of the case due to Plaintiff's failure to comply with this court's August 7, 2025, order, the court finds that there is no prejudice to Defendant in the absence of the discovery responses that are the subject of the court's prior order. As a result, the request for terminating sanctions is premature, and termination would be punitive rather than remedial. (*Morgan v. Ransom* (1979) 95 Cal.App.3d 664, 669-670.)

However, where lesser sanctions have been ordered, such as an order compelling compliance with discovery requests, and the party persists in disobeying, the party does so “at his own risk, knowing that such a refusal provided the court with statutory authority to impose other sanctions” such as dismissing the action. (*Ruvalcaba v. Government Employees Ins. Co.* (1990) 222 Cal.App.3d 1579, 1583.)

24CV-03606

Bianca Barrera vs Foster Poultry Farms, LLC, et al.

Motion for Terminating and Monetary Sanctions CCP 2030.300 (E), 2023.010 (G), & 2023.030 (A)-(D)

Defendant’s motion is GRANTED IN PART and DENIED IN PART.

The request for judicial notice is GRANTED.

Plaintiff Barrera has failed to comply with this court’s August 7, 2025, order.

The request for monetary sanction is GRANTED.

Monetary sanctions in the amount of \$1,500 are to be paid to Defendant’s counsel within fifteen (15) days of this court’s order.

Plaintiff is ordered to comply with this court’s discovery order entered on August 7, 2025, within ten (10) days of being served with this order.

The request for terminating sanctions is DENIED WITHOUT PREJUDICE.

Other than the delay of the case due to Plaintiff’s failure to comply with this court’s August 7, 2025, order, the court finds that there is no prejudice to Defendant in the absence of the discovery responses that are the subject of the court’s prior order. As a result, the request for terminating sanctions is premature, and termination would be punitive rather than remedial. (*Morgan v. Ransom* (1979) 95 Cal.App.3d 664, 669-670.)

However, where lesser sanctions have been ordered, such as an order compelling compliance with discovery requests, and the party persists in disobeying, the party does so “at his own risk, knowing that such a refusal provided the court with statutory authority to impose other sanctions” such as dismissing the action. (*Ruvalcaba v. Government Employees Ins. Co.* (1990) 222 Cal.App.3d 1579, 1583.)

24CV-04539

Lawler Excavation Pipeline and Utilities, Inc. vs Doug Boyer, et al.

Motion to Consolidate Actions

Defendant Doug Boyer Construction’s motion to consolidate actions for all purposes is GRANTED.

Case Nos. 24CV-06525, 24CV-06543, 25CV-02184, and 25CV-06356 are to be consolidated with 24CV-04539.

Code of Civil Procedure section 1048, subdivision (a) states “When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.”

The court finds these actions involve common questions of law and fact and arise from the same transaction or occurrence, therefore consolidation for all purposes is warranted.

In general, each lawsuit is based on the same operative facts. For these cases, the plaintiffs allege that: (1) Doug Boyer Construction served as the general contractor for the Compass Pointe II project; (2) the subcontractor entered into an agreement with Doug Boyer Construction to perform a portion of the work on the project; (3) the subcontractor performed the work; and (4) Doug Boyer Construction failed to make payment. In addition, Doug Boyer has filed substantially identical third-party complaints in several of the actions against Compass Pointe Off Campus Partnership B, LLC and Merced DIP Lender, LLC, alleging that those entities are responsible for the nonpayment giving rise to the subcontractor claims. (Boyer Memo 8:11-21)

The opposition by Merced DIP Lender, LLC does not dispute this and opposes the consolidation based on the procedural posture in 24CV-06543. While consolidation may disrupt ongoing negotiations in that matter or may delay any dispositive motion that may be filed by Merced DIP Lender, LLC, it does not outright extinguish those efforts, nor do those efforts outweigh the efficiencies gained through consolidation. The purpose of consolidation is to promote overall convenience and judicial economy, particularly where there is a common question of law and fact, as there is here.

The opposition requests that any consolidation either exclude 24CV-06543 or limit consolidation for discovery purposes only.

The court denies both requests. To allow 24CV-06543 to proceed separately would not only create substantial inefficiencies for the court and parties, but it could also result in inconsistent rulings. Further, the court is not aware of any authority for consolidation only for purposes of discovery. While the parties are free to stipulate that all discovery in any of the related cases be deemed to have been propounded and answered in all of the cases, case law only recognizes two types of consolidation: that for purposes of trial only and that for all purposes. (See *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1147 [Under the statute and the case law, there are thus two types of consolidation: a consolidation for purposes of trial only . . .; and a complete consolidation or consolidation for all purposes . . .].)

Accordingly, the motion to consolidate for all purposes is granted.

24CV-04539 is to be designated as the master file. All subsequent documents must be filed only in 24CV-04539. (Rule of Ct. 3.350)

Case Management Conference

Appearance required.

Motion to Consolidate Actions

Defendant Doug Boyer Construction's motion to consolidate actions for all purposes is GRANTED.

Case Nos. 24CV-06525, 24CV-06543, 25CV-02184, and 25CV-06356 are to be consolidated with 24CV-04539.

Code of Civil Procedure section 1048, subdivision (a) states "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay."

The court finds these actions involve common questions of law and fact and arise from the same transaction or occurrence, therefore consolidation for all purposes is warranted.

In general, each lawsuit is based on the same operative facts. For these cases, the plaintiffs allege that: (1) Doug Boyer Construction served as the general contractor for the Compass Pointe II project; (2) the subcontractor entered into an agreement with Doug Boyer Construction to perform a portion of the work on the project; (3) the subcontractor performed the work; and (4) Doug Boyer Construction failed to make payment. In addition, Doug Boyer has filed substantially identical third-party complaints in several of the actions against Compass Pointe Off Campus Partnership B, LLC and Merced DIP Lender, LLC, alleging that those entities are responsible for the nonpayment giving rise to the subcontractor claims. (Boyer Memo 8:11-21)

The opposition by Merced DIP Lender, LLC does not dispute this and opposes the consolidation based on the procedural posture in 24CV-06543. While consolidation may disrupt ongoing negotiations in that matter or may delay any dispositive motion that may be filed by Merced DIP Lender, LLC, it does not outright extinguish those efforts, nor do those efforts outweigh the efficiencies gained through consolidation. The purpose of consolidation is to promote overall convenience and judicial economy, particularly where there is a common question of law and fact, as there is here.

The opposition requests that any consolidation either exclude 24CV-06543 or limit consolidation for discovery purposes only.

The court denies both requests. To allow 24CV-06543 to proceed separately would not only create substantial inefficiencies for the court and parties, but it could also result in inconsistent rulings. Further, the court is not aware of any authority for consolidation only for purposes of discovery. While the parties are free to stipulate that all discovery in any of the related cases be deemed to have been propounded and answered in all of the cases, case law only recognizes two types of consolidation: that for purposes of trial only and that for all purposes. (See *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1147 [Under the statute and the case law, there are thus two types of consolidation:

a consolidation for purposes of trial only . . .; and a complete consolidation or consolidation for all purposes . . .].)

Accordingly, the motion to consolidate for all purposes is granted.

24CV-04539 is to be designated as the master file. All subsequent documents must be filed only in 24CV-04539. (Rule of Ct. 3.350)

Case Management Conference

Appearance required.

24CV-06543 Silveira & Son Drywall, Inc. vs Allan Boyer, et al.

Motion to Consolidate Actions

Defendant Doug Boyer Construction's motion to consolidate actions for all purposes is GRANTED.

Case Nos. 24CV-06525, 24CV-06543, 25CV-02184, and 25CV-06356 are to be consolidated with 24CV-04539.

Code of Civil Procedure section 1048, subdivision (a) states "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay."

The court finds these actions involve common questions of law and fact and arise from the same transaction or occurrence, therefore consolidation for all purposes is warranted.

In general, each lawsuit is based on the same operative facts. For these cases, the plaintiffs allege that: (1) Doug Boyer Construction served as the general contractor for the Compass Pointe II project; (2) the subcontractor entered into an agreement with Doug Boyer Construction to perform a portion of the work on the project; (3) the subcontractor performed the work; and (4) Doug Boyer Construction failed to make payment. In addition, Doug Boyer has filed substantially identical third-party complaints in several of the actions against Compass Pointe Off Campus Partnership B, LLC and Merced DIP Lender, LLC, alleging that those entities are responsible for the nonpayment giving rise to the subcontractor claims. (Boyer Memo 8:11-21)

The opposition by Merced DIP Lender, LLC does not dispute this and opposes the consolidation based on the procedural posture in 24CV-06543. While consolidation may disrupt ongoing negotiations in that matter or may delay any dispositive motion that may be filed by Merced DIP Lender, LLC, it does not outright extinguish those efforts, nor do those efforts outweigh the efficiencies gained through consolidation. The purpose of consolidation is to promote overall convenience and judicial economy, particularly where there is a common question of law and fact, as there is here.

The opposition requests that any consolidation either exclude 24CV-06543 or limit consolidation for discovery purposes only.

The court denies both requests. To allow 24CV-06543 to proceed separately would not only create substantial inefficiencies for the court and parties, but it could also result in inconsistent rulings. Further, the court is not aware of any authority for consolidation only for purposes of discovery. While the parties are free to stipulate that all discovery in any of the related cases be deemed to have been propounded and answered in all of the cases, case law only recognizes two types of consolidation: that for purposes of trial only and that for all purposes. (See *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1147 [Under the statute and the case law, there are thus two types of consolidation: a consolidation for purposes of trial only . . .; and a complete consolidation or consolidation for all purposes . . .].)

Accordingly, the motion to consolidate for all purposes is granted.

24CV-04539 is to be designated as the master file. All subsequent documents must be filed only in 24CV-04539. (Rule of Ct. 3.350)

Case Management Conference

Appearance required.

25CV-02184 Valley Stairway, Inc. vs Doug Boyer, et al.

Motion to Consolidate Actions

Defendant Doug Boyer Construction's motion to consolidate actions for all purposes is GRANTED.

Case Nos. 24CV-06525, 24CV-06543, 25CV-02184, and 25CV-06356 are to be consolidated with 24CV-04539.

Code of Civil Procedure section 1048, subdivision (a) states "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay."

The court finds these actions involve common questions of law and fact and arise from the same transaction or occurrence, therefore consolidation for all purposes is warranted.

In general, each lawsuit is based on the same operative facts. For these cases, the plaintiffs allege that: (1) Doug Boyer Construction served as the general contractor for the Compass Pointe II project; (2) the subcontractor entered into an agreement with Doug Boyer Construction to perform a portion of the work on the project; (3) the subcontractor performed the work; and (4) Doug Boyer Construction failed to make payment. In addition, Doug Boyer has filed substantially identical third-party complaints in several of the actions against Compass Pointe Off Campus Partnership B, LLC and

Merced DIP Lender, LLC, alleging that those entities are responsible for the nonpayment giving rise to the subcontractor claims. (Boyer Memo 8:11-21)

The opposition by Merced DIP Lender, LLC does not dispute this and opposes the consolidation based on the procedural posture in 24CV-06543. While consolidation may disrupt ongoing negotiations in that matter or may delay any dispositive motion that may be filed by Merced DIP Lender, LLC, it does not outright extinguish those efforts, nor do those efforts outweigh the efficiencies gained through consolidation. The purpose of consolidation is to promote overall convenience and judicial economy, particularly where there is a common question of law and fact, as there is here.

The opposition requests that any consolidation either exclude 24CV-06543 or limit consolidation for discovery purposes only.

The court denies both requests. To allow 24CV-06543 to proceed separately would not only create substantial inefficiencies for the court and parties, but it could also result in inconsistent rulings. Further, the court is not aware of any authority for consolidation only for purposes of discovery. While the parties are free to stipulate that all discovery in any of the related cases be deemed to have been propounded and answered in all of the cases, case law only recognizes two types of consolidation: that for purposes of trial only and that for all purposes. (See *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1147 [Under the statute and the case law, there are thus two types of consolidation: a consolidation for purposes of trial only . . .; and a complete consolidation or consolidation for all purposes . . .].)

Accordingly, the motion to consolidate for all purposes is granted.

24CV-04539 is to be designated as the master file. All subsequent documents must be filed only in 24CV-04539. (Rule of Ct. 3.350)

Case Management Conference

Appearance required.

25CV-05206 Catalina Torres, et al. vs Allstate Insurance Company

Motion to Compel Plaintiffs' Further Responses to First Set of Requests for Production & Request for Monetary Sanctions in the Amount Of \$1,260.00

Defendant's motion to compel further responses to the first set of requests for production is GRANTED.

Plaintiffs' responses do not comply with Code of Civil Procedure section 2031.220. Any statement of compliance must state that it will be in full or in part and that all documents that are in the possession, custody, or control will be included in the production. (See Code Civ. Proc. § 2031.220.)

If Plaintiff are unable to fully comply, then they must state their inability to comply in accordance with Code of Civil Procedure section 2031.230.

Plaintiffs are to provide further verified, code compliant, responses within thirty (30) days of this court's order.

Defendant's request for monetary sanctions is GRANTED.

Monetary sanctions in the amount of \$1,000 are to be paid to Defendant within thirty (30) days of this court's order.

The court will sign the order lodged with the court on April 15, 2026, modifying the proposed order to reflect the amount of monetary sanctions granted in the amount of \$1,000.

25CV-06356

Vezina Industries, Inc. vs Doug Boyer, et al.

Motion to Consolidate Actions

Defendant Doug Boyer Construction's motion to consolidate actions for all purposes is GRANTED.

Case Nos. 24CV-06525, 24CV-06543, 25CV-02184, and 25CV-06356 are to be consolidated with 24CV-04539.

Code of Civil Procedure section 1048, subdivision (a) states "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay."

The court finds these actions involve common questions of law and fact and arise from the same transaction or occurrence, therefore consolidation for all purposes is warranted.

In general, each lawsuit is based on the same operative facts. For these cases, the plaintiffs allege that: (1) Doug Boyer Construction served as the general contractor for the Compass Pointe II project; (2) the subcontractor entered into an agreement with Doug Boyer Construction to perform a portion of the work on the project; (3) the subcontractor performed the work; and (4) Doug Boyer Construction failed to make payment. In addition, Doug Boyer has filed substantially identical third-party complaints in several of the actions against Compass Pointe Off Campus Partnership B, LLC and Merced DIP Lender, LLC, alleging that those entities are responsible for the nonpayment giving rise to the subcontractor claims. (Boyer Memo 8:11-21)

The opposition by Merced DIP Lender, LLC does not dispute this and opposes the consolidation based on the procedural posture in 24CV-06543. While consolidation may disrupt ongoing negotiations in that matter or may delay any dispositive motion that may be filed by Merced DIP Lender, LLC, it does not outright extinguish those efforts, nor do those efforts outweigh the efficiencies gained through consolidation. The purpose of consolidation is to promote overall convenience and judicial economy, particularly where there is a common question of law and fact, as there is here.

The opposition requests that any consolidation either exclude 24CV-06543 or limit consolidation for discovery purposes only.

The court denies both requests. To allow 24CV-06543 to proceed separately would not only create substantial inefficiencies for the court and parties, but it could also result in inconsistent rulings. Further, the court is not aware of any authority for consolidation only for purposes of discovery. While the parties are free to stipulate that all discovery in any of the related cases be deemed to have been propounded and answered in all of the cases, case law only recognizes two types of consolidation: that for purposes of trial only and that for all purposes. (See *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1147 [Under the statute and the case law, there are thus two types of consolidation: a consolidation for purposes of trial only . . .; and a complete consolidation or consolidation for all purposes . . .].)

Accordingly, the motion to consolidate for all purposes is granted.

24CV-04539 is to be designated as the master file. All subsequent documents must be filed only in 24CV-04539. (Rule of Ct. 3.350)

Case Management Conference

Appearance required.

26CV-01625 Gayle Cloutier et al vs Richard Cloutier

Order to Show Cause Re: Restraining Order

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday May 15, 2026
9:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-06130	Kanwaldeep Bains vs County of Merced, et al.
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Hearing: In Camera – Ruling

This Court, having reviewed the records that are the subject of the instant petition pursuant to the California Public Records Act (CPRA), examined the papers filed by the parties, and considered oral arguments, finds that the requested records are exempt from disclosure under the Act pursuant to Government Code sections 7927.700 and 7927.705. (Gov't Code §§ 7922.000, 7923.105, 7923.110, subd. (b).) The requested records are materials obtained during the course of a human resources investigation of a personnel matter within a county agency. The agency retained a law firm to conduct the investigation and prepare a report and recommendations based on the investigation results.

First, these records are subject to the limitations on disclosure under Government Code section 7927.700. These are personnel files and similar records, disclosure of which would constitute an unwarranted invasion of personal privacy. Although Petitioner asserts, and Respondent does not dispute, that she was affected party in the subject investigation, the CPRA is blind to the identity of the requesting party and evaluates disclosure requirements as they would apply to any member of the public. A citizen who otherwise may have a right to obtain particular records cannot avail themselves of the

CPRA and expect to be treated differently to a media agency or disinterested party. Rather, the procedures and limits of the CPRA apply regardless of the identity of the requestor or the intended purpose of the request.

Second, these records are exempt from disclosure under state law, as they are subject to both attorney-client privilege and the work-product doctrine. (Evid. Code § 954; Code Civ. Proc. §§ 2018.010, et seq.) An employer's prelitigation factual investigation is protected by attorney-client privilege and the work-product doctrine when that investigation is undertaken by outside counsel, retained for that purpose. (See, e.g., *City of Petaluma v. Superior Court* (2016) 248 Cal.App.4th 1023.) The Court finds that the County of Merced formed an attorney-client relationship with attorney Starkebaum. In conducting the target investigation during which all subject records were produced, Ms. Starkebaum relied upon "her legal expertise to identify the pertinent facts, synthesize the evidence, and come to a conclusion as to what actually happened." (*Ibid.* at 1035.) "The dominant purpose of [Starkebaum's] representation was to provide professional legal services" to County Counsel. (*Ibid.*)

Although the final report prepared by counsel is unquestionably privileged, the subject documents include emails, audio files of interviews, and attachments. (*Petaluma*, 248 Cal.App.4th at 1037.) This Court specifically finds that the above privileges and protections protect all of the subject records, including the audio files of interview records between Starkebaum and persons involved in the investigation, interview notes, and emails. Starkebaum's legal expertise was the reason she was retained to conduct the investigation, and unquestionably that expertise was employed in determining how to conduct interviews, which questions to ask, and what follow-up information to seek.

The petition for writ of mandate, compelling disclosure of public records is DENIED. As this Court finds the County of Merced was justified in refusing to make the subject records public, the records will be returned to the County of Merced without further disclosure of their content, together with this Court's ruling and order supporting the decision refusing disclosure.